

**THE BOARD OF COUNTY ROAD COMMISSIONERS OF THE COUNTY OF
OAKLAND
STATE OF MICHIGAN
PROPOSAL FOR:**

A CONTRACT FOR THE CLEANING AND SEALING OF RANDOM CRACKS VIA OVERBAND METHOD ON VARIOUS ROADS LOCATED IN OAKLAND COUNTY, MICHIGAN.

PROJECT: # 202670 – CRACK SEALING PROGRAM FOR YEARS 2026 AND 2027

BIDS WILL BE OPENED AT 2:30 PM TUESDAY, **FEBRUARY 17, 2026** AT THE ROAD COMMISSION FOR OAKLAND COUNTY OFFICES, 31001 LAHSER ROAD, BEVERLY HILLS, MICHIGAN 48025. ALL BIDS MUST BE SUBMITTED VIA WWW.BIDNETDIRECT.COM BY 2:30 PM ON TUESDAY, **FEBRUARY 17, 2026**.

To the Board of County Road Commissioners of the County of Oakland, State of Michigan (the "Board," also known as the "Road Commission for Oakland County," and "Road Commission").

The Bidder has examined the plans, specifications and the location of the work described herein and is fully informed as to the nature of the work and the conditions relating to its performance and location and understands that the quantities shown are approximate only and subject to either increase or decrease.

The Bidder hereby proposes to furnish all necessary machinery, tools, apparatus and other means of construction, do all the work, furnish all the materials, except as otherwise specified herein, and, for the unit prices named in the itemized bid, to complete the work herein described in strict accordance with the plans therefor and in strict conformity with the requirements of the Road Commission for Oakland County, and such other special provisions and supplemental specifications as may be a part of this proposal.

The Bidder further proposes to do such extra work as may be authorized by the Board, prices for which are not included in the itemized bid. Compensation shall be made on the basis agreed upon before such extra work is begun.

The Bidder agrees upon submitting this bid that its agents, officers, or employees have not directly or indirectly entered into any agreements, participated in any collusion, or otherwise taken any action in restraint of free competitive bidding in connection with this proposal for the above work.

The successful bidder must furnish satisfactory payment and performance bonds, and proof of insurance to the Board, within 14 days after being furnished with the necessary forms.

The Bidder understands and agrees that the Road Commission reserves the right to reject any and all bids and that no contractual relationship shall exist between the Bidder and the Road Commission for the work described herein until such time as the contract has been formally executed by both the Bidder and the Road Commission.

ADVERTISEMENT FOR BIDS
CRACK SEALING PROGRAM FOR YEARS 2026 AND 2027

ROAD COMMISSION FOR OAKLAND COUNTY
BEVERLY HILLS, MICHIGAN

Electronically submitted proposals via www.bidnetdirect.com will be received by the Board of County Road Commissioners of the County of Oakland at its Beverly Hills Office, 31001 Lahser Road, Beverly Hills, Michigan 48025, until 2:30 PM., local time, **Tuesday, February 17, 2026**, at which time the submitted electronic bids will be downloaded, opened and posted on www.bidnetdirect.com.

PROJECT: # 202670 – CRACK SEALING PROGRAM FOR YEARS 2026 AND 2027

A CONTRACT FOR CLEANING AND SEALING OF RANDOM CRACKS VIA THE OVERBAND METHOD ON VARIOUSROADS LOCATED IN OAKLAND COUNTY, MICHIGAN.

Plans and/or proposals will be available for download on or after **February 3, 2026**. Bid deposit amounts and project description, including approximate materials and quantities for each project are identified in the plans and proposals.

Digital plans and proposals are available at www.bidnetdirect.com. Digital bid submissions will be accepted per the instructions and requirements listed on www.bidnetdirect.com.

Board reserves the right to reject any and all proposals, or to waive defects and to accept the proposals that in the opinion of the Board are in the best interest of and to the advantage of the Board of County Road Commissioners, of the County of Oakland, Michigan.

Eric McPherson, Commissioner
James Esshaki, Commissioner
Tylene L. Henry, Commissioner
Dennis G. Kolar, P.E., Managing Director

**Road Commission for Oakland County
Schedule of Items (Itemized Bid Sheet)**

INSTRUCTION TO THE

BIDDERS:

FOR ELECTRONIC BIDDING ONLY

Letting Date: Tuesday, February 17, 2026 2:30 PM

SCHEDULE OF ITEMS (ITEMIZED BID SHEET)

PROJECT # 202670- 2026 CRACK SEALING				
Pay Item Description	Quantity	Unit	Unit Price	Bid Amount
Overband Crack Fill	133,330	LB		
Secondary Pay Item				
Pay Item Description	Quantity	Unit	Unit Price	
Concrete Crack Seal (Flush Fill)	1	LB		

PROJECT # 202670- 2027 CRACK SEALING				
Pay Item Description	Quantity	Unit	Unit Price	Bid Amount
Overband Crack Fill	142,850	LB		
Secondary Pay Item				
Pay Item Description	Quantity	Unit	Unit Price	
Concrete Crack Seal (Flush Fill)	1	LB		

PROGRESS CLAUSE

RCOC/DESIGN: SP

Page 1 of 1

RCOC12PC ORG: 12/21/2017

REV: 1/28/2026

a. General

Start work within ten (10) days after receiving Notice of Award of Contract.

In no case shall any work be commenced prior to receipt of formal Notice of Award of Contract by the Department. After receiving the Notice of Award, start work on the date agreed upon with the Engineer. In no case shall any work commenced prior to receipt of formal notice of award.

The low bidder(s) for the work covered by this proposal will be required to meet with Road Commission representatives to submit a Progress Schedule in accordance with Section 102.14, Construction Progress Schedule, of the MDOT 2020 Standard Specifications for Construction. The project Engineer will arrange the time and place for this meeting within two weeks after the low bidder is determined.

The Progress Schedule shall include, as a minimum, the controlling work items for the completion of the project and the planned dates that these work items will be controlling operations. When specified in the bidding proposal, the date the project is to be opened to traffic as well as the final project completion date shall also be included in the project schedule. If the Bidding Proposal specifies other controlling dates, these shall also be included in the Progress Schedule.

The Contractor shall be expected to mobilize sufficient labor and equipment to complete the project within the specified time frame.

Complete project by November 15, 2026 (or 2027) unless otherwise approved by the Project Engineer.

If the project is suspended by the Project Engineer, work shall resume starting on a date agreed upon by the Project Engineer or **May 1, 2027 (or 2028)** whichever is earlier.

Failure on the part of the Contractor to carry out the provisions of the Progress Schedule, as established, may be considered sufficient cause to prevent bidding future projects until a satisfactory rate of progress is again established.

The Contractor shall be expected to mobilize sufficient labor and equipment to complete the project within the specified time frames. RCOC staff will coordinate the daily gravel hauling activities (start time, locations, start day, working days, potential delays due to weather/resources...) with the contractor(s). The project Engineer will provide the contractor (s) will a list of roads to be gravel. Locations are subject to change at the discretion of the RCOC.

The Contractor may be required to meet with Department representatives for a post-construction review meeting, as directed by the Engineer. The Engineer will schedule the meeting.

b. Work day, hour, and other work restrictions imposed by local communities

The work hours described may be modified or changed by the Project Engineer due to Holidays, Special Events, or Traffic Volumes.

- A. Operations shall be limited by the local municipality's work time, noise, and dust ordinance unless approved by the local municipality and the Project Engineer in writing
- B. No work or lane closures, unless approved by the Project Engineer, shall be performed during: Memorial Day, 4th of July, or Labor Day.

ROAD COMMISSION FOR OAKALND COUNTY

SPECIAL PROVISION
FOR
PAYMENT AND PERFORMANCE BONDS

RCOC/DESIGN:JA

PAGE 1 OF 3

RCOC20SP102DL
ORG:04-27-21

a. Description

The successful bidder will be required to submit payment and performance bonds at the time of Contract signing. Examples of the forms are included in this special provision.

RCOC PROJECT
PROJECT
NAME

PAYMENT BOND

KNOW ALL MEN BY THESE PRESENTS, that we, CONTRACTOR AND ADDRESS as principal, and _____, duly authorized to transact business in the State of Michigan, as surety, are held and firmly bound unto the Board of County Road Commissioners of the County of Oakland, State of Michigan, in the sum of CONTRACT AMOUNT IN WORDS dollars, lawful money of the United States to be paid to the said Board of County Road Commissioners, or to its assigns, or to any person, firm or corporation who may furnish labor, material, supplies for equipment, for construction, and equipment on a rental basis, on account of and actually used in the performance of the contract hereinafter mentioned, to which payment will and truly to be made, we bind ourselves, our heirs, executors, administrators and assigns and each and every one of them firmly by these presents. Sealed with our seals and dated this _____ day of _____, A.D. 20__.

The condition of this obligation is such that if there shall be paid, as the same may become due and payable, all indebtedness which may arise from said principal to a sub-contractor or to any person, firm or corporation on account of any labor, material, supplies for equipment, for construction, and rental of equipment, furnished and actually used in the performance of the contract to which this bond is attached, including extensions of time, (notice of which is hereby waived by the surety), then this obligation is to be void, otherwise to remain in full force and effect.

Name, Address &
Telephone Number of Local Agent

CONTRACTOR NAME

By _____
Its _____

Surety By _____
Its _____

RCOC PROJECT
PROJECT
NAME

PERFORMANCE BOND

KNOW ALL MEN BY THESE PRESENTS, that we, CONTRACTOR NAME AND ADDRESS as principal, and _____, duly authorized to transact business in the State of Michigan, as surety, are held and firmly bound unto the Board of County Road Commissioners of the County of Oakland, State of Michigan, in the penal sum of CONTRACT IN WORDS dollars, lawful money of the United States, to be paid to the said Board of County Road Commissioners or to us certain attorney or assigns, to which payment, well and truly to be made, we bind ourselves, our heirs, executors, and assigns, jointly and severally, firmly by these presents. With our seals and dated this _____ day of _____, Sealed A.D. 20___. The condition of this obligation is such that if the above named principal shall and will, well and faithfully, and fully, do, execute and perform the contract to which this bond is attached, according to the terms and conditions thereof, including extensions of time, (notice of which is hereby waived by the surety), then this obligation is to be void, otherwise to remain in full force and effect.

CONTRACTOR NAME Principal

By _____
Its _____

Surety By _____ Its _____

Note: If the Principal is a co-partnership, each member must sign these bonds. If the principal is a corporation, evidence of the authority of officer signing must be attached or be on file with the Board of County Road Commissioners. When someone other than an officer or owner is signing, a notarized CERTIFICATE OF SECRETARY must be attached. The Surety Company shall attach, or have on file with the Board of County Road Commissioners, a valid power of attorney of person or persons executing bond for the Company.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
INDEMNIFICATION, DAMAGE LIABILITY AND INSURANCE

RCOC/DESIGN:JO

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RCOC20SP107AL
ORG:08-10-21

Section 107.10 of the *Michigan Department of Transportation 2020 Standard Specifications for Construction* is to be deleted and replaced with the following:

a. Indemnification:

The Contractor must hold harmless, indemnify, and defend in litigation the Board of County Road Commissioners of the County of Oakland (the "Board"), the County of Oakland, the Office of the Oakland County Water Resources Commissioner, any and all drainage district(s) and local unit(s) of government affected by the Project, Michigan Department of Transportation, and their agents and employees against claims for damage to public or private property and for injuries to persons arising out of the performance of the work, including attorney's fees related to said claims. The Contractor will not be responsible for claims that result from the sole negligence or willful acts or omissions of said indemnitee. Nothing herein shall require Contractor to provide such indemnity for any amount greater than Contractor's degree of fault.

b. Insurance Coverage:

Prior to execution of the contract, Contractor shall obtain from insurers acceptable to the Board, having and A.M. Best rating of A- or better, the insurance coverages set forth below, which coverages shall be primary and non-contributory; and Contractor shall file with the Board, copies of completed certificates of insurance and endorsements as evidence that carries the required insurance coverage. Contractor shall obtain and maintain the following insurance coverage acceptable to the Board:

1. Workmen's Compensation and Employer's Liability Insurance: To provide protection for the Contractor's employees to the statutory limits of the State of Michigan. The coverage must include \$500,000 employer's liability (\$500,000 for each accident, \$500,000 disease by employee, \$500,000 disease policy limit). The indemnification obligation under this section shall not be limited in any ways by any limitation on the amount or type of damages, compensation or benefits payable by or for the Contractor under worker's disability compensation coverage established by law.
2. Bodily Injury and Property Damage: To afford protection against all claims for damages to public or private property, and injuries to persons arising out of and during the progress and to the completion of the work, and with respects to product and completed operations for one year after completion of the work.

Table 1: Bodily Injury and Property Damage

Bodily Injury Liability		OR	Single Limit: Bodily Injury and Property Damage	
Each Person:	\$1,000,000		Each Occurrence:	\$1,000,000
Each Occurrence:	\$1,000,000		Aggregate:	\$2,000,000
Aggregate:	\$2,000,000			
AND				
Property Damage Liability:				
Each Occurrence:	\$1,000,000			
Aggregate:	\$2,000,000			

Such insurance shall include: (1) explosion, collapse, and underground damage hazards (x,c,u), which shall include, but not be limited to coverage for (a) underground damage to facilities due to drilling and excavating with mechanical equipment; and (b) collapse or structural injury to structures due to blasting or explosion, excavation, tunneling, pile driving, cofferdam work, or building moving or demolition; (2) products and completed operations; (3) contractual liability; and (4) independence contractors coverages.

Bodily Injury Liability and Property Damage Liability Automobiles (Comprehensive Auto Liability)

– The minimum limits of bodily injury liability and property damage liability shall be:

Table 2: Bodily Injury Liability and Property Damage Liability Automobiles (Comprehensive Auto Liability)

Bodily Injury and Property Damage Liability		OR	Single Limit: Bodily Injury and Property Damage	
Each Person:	\$500,000		Each Occurrence:	\$2,000,000
Each Occurrence:	\$1,000,000			
AND				
Michigan No-Fault Statutory:				
Property Damage	\$1,000,000			
PIP:	Full and No Reductions or Voluntary Exclusions			

Such insurance shall include coverage for all owned, hired, and non-owned vehicles.

3. Excess and Umbrellas Insurance – The Contractor may substitute corresponding excess and/or umbrella liability insurance for a portion of the above listed requirements in order to meet the specified minimum limits of liability.

4. Owners Protective Liability. The Contractor must ensure that the insurer extends bodily injury and property damage protection, including general supervision of work performed, to the Board of County Road Commissioners of the County of Oakland and all agencies as specified under Subparagraph a of this Special Provision, and their agents and employees and, as indicated by the identity of the contracting parties, to participating political subdivisions and public corporations. The minimum limit will be \$1,000,000 for each occurrence and \$2,000,000 for aggregate.

c. Notice:

The Contractor must ensure that all insurance policies and binders include an endorsement by which the insurer agrees to notify the Board in writing at least 30 days before there is a cancellation or material change in coverage. The Contractor must stop operations if any insurance is canceled or reduced, and must not resume operations until new insurance is in force.

d. Damage Claims:

The Contractor is responsible for acting on damage claims that occur from acts or omissions that occur in the execution of the contract . The Contractor may act directly with the claimant or through the claimants' insurance carrier.

1. Damage Claim Program. Before beginning construction on the project, the Contractor must submit a written damage claim program for approval by the Engineer. The damage claim program must outline the Contractor's plan for the investigation and disposition of damage claims. The Contractor must meet with the Engineer to discuss the damage claim program and develop a mutual understanding of how the Contractor will govern, administer, and enforce the program.

2. Damage Claim Officer. The Contractor must provide written notification to the Engineer of the name and contact information for the Contractor's Damage Claim Officer. The Damage Claim Officer is the person with the authority and responsibility to administer the Contractor's damage claim program.

3. Damage Claim Process. The Engineer will submit damage claim forms received by the Department to the Contractor within 14 days from the first contact with the claimant. The Contractor must act on damage claims within the time frames specified in this subsection, and must submit to the Engineer a report on damage claims received that includes information as specified in subsection D.5 of this Special Provision.

A. Claims Less Than or Equal To \$1,500. The Contractor must reach final disposition and notify the claimant within 60 calendar days of receipt of the damage claim form from the Engineer. If the Contractor fails to reach final disposition and

notify the claimant within 60 calendar days, the Engineer will enforce subsection D.3.(c), below. In this circumstance, the Board defines restoration as payment to the claimant for alleged damages as documented on the original damage claim form. If payment is made based on failure to meet the time requirement, the claimant must sign a waiver indicating that payment was made because of a failure to meet the time requirement not because of the merit of the damage claim. Before the 60 calendar days expires, the Contractor may request an extension of no more than 30 calendar days for documented circumstances beyond the Contractor's control. The Contractor must make this request in writing to the Engineer.

B. Claims Greater Than \$1,500. The Contractor must reach final disposition and notify the claimant within 120 calendar days of receipt of the damage claim form from the Engineer. If the 120 calendar days expire prior to final acceptance of the project, the Engineer will withhold the amount of the damage claim from payments to the Contractor until the Contractor reaches final disposition and notifies the claimant.

C. Protection and Restoration of Property. The Contractor must restore, at no additional cost to the Board, public and private property damaged because of acts or omissions by the Contractor and the employees and agents of the Contractor, to a condition similar and equal to that existing before the damage occurred. If the Contractor neglects to make restoration within 7 days of receiving written notice from the Engineer, or as otherwise required by applicable laws or regulations, the Engineer may proceed to make the restoration. The Engineer will deduct the cost of the restoration from monies that are or may become due the Contractor.

4. **Final Disposition.** The Department will withhold from the final estimate or monies due or to become due the Contractor an amount not exceeding the aggregate amount of all outstanding and unresolved damage claims until final disposition of all damage claims. Final disposition for damage claims \$1,500 or less must include payment, settlement, or denial of the damage claim by the Contractor's insurer or the Contractor. Final disposition for damage claims over \$1,500 must include payment, settlement, or denial of the damage claim by the Contractor's insurer, or settlement or payment by the Contractor.

5. **Documentation Requirements.** The Contractor must submit to the Engineer a report upon final disposition of each damage claim. The report must include the following information:

- A. Location of the incident;
- B. Specific work activities for day and time of damage claim;
- C. Detailed weather and road conditions;
- D. Traffic movements, signing, equipment in use;

- E. Any unusual occurrences;
 - F. Measurements taken at the time or location of the incident;
 - G. Records of all contact with Engineer or claimant to discuss disposition;
 - H. Other documentation pertinent to the damage claim; and
 - I. Report of final disposition of damage claim.
6. The Certificate of Insurance and bond forms properly executed, must be provided to the Board, before the award of the contract by the Board.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
TAXES

RCOC/DESIGN:JA

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RCOC20SP107BL
ORG:04-27-21

Contractor shall include and be deemed to have included in the bid and contract price all Michigan sales and use taxes currently imposed by legislative enactment and as administered by the Michigan Department of Treasury on the bid date.

If Contractor is not required to pay or bear the burden, or obtains a refund or drawback, in whole or in part, of any Michigan sales or use tax, interest or penalty thereon, which was required to be and was deemed to have been included in the bid and contract price, the contract price shall be reduced by the amount thereof and the amount of such reduction, whether as a refund or otherwise, shall ensure solely to the benefit of the Road Commission for Oakland County.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
FEDERAL E-VERIFY PROGRAM

RCOC/DESIGN:JA

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RCOC20SP107DL
ORG:04-27-21

a. Description

E-Verify is an Internet-based system that allows an employer, using information reported on an employee's Form I-9, Employment Eligibility Verification, to determine the eligibility of that employee to work in the United States. There is no charge to employers to use E-Verify. The E-Verify system is operated by the Department of Homeland Security (DHS) in partnership with the Social Security Administration. E-Verify is available in Spanish.

The RCOC is requiring all Contractors, and Subcontractors, to verify that new employees are legally present and authorized to work in the United States, using the E-Verify System. Failure of Contractor to comply with the Federal E-Verify Program may be a basis for termination of the contract by the RCOC.

Information on registration for and use of the E-Verify program can be obtained via the Internet at the DHS Web site: <http://www.dhs.gov/E-Verify>.

It is the responsibility of the Contractor to include this specification in all tiers of subcontracts.

The required use of the E-Verify system will not be paid for separately as part of the contract but is considered included in the costs for other pay items in the contract.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
LAW COMPLIANCE

RCOC/DESIGN:JA

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RCOC20SP107CL
ORG:04-27-21

Contractor shall comply with all applicable federal, state and local laws, ordinances, codes and regulations and with any and all Road Commission regulations, Contractor shall obtain at its sole cost and expenses any and all required federal, state and local permits, and shall be responsible for such compliance by its employees, agents, contractors and subcontractors, unless this Proposal expressly states that the RCOC will obtain and provide a particular permit.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
NON-DISCRIMINATION CLAUSE

RCOC/DESIGN:JO

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RCOC20SP107EL
ORG:04-27-21

a. Description

The Contractor specifically agrees that it will comply with any and all applicable State, Federal, and Local statutes, ordinances, and regulations, and with RCOC regulations during performance of the services and will require compliance of all subcontractors and sub-consultants.

Additionally, the Contractor shall comply with the following:

In accordance with Michigan 1976 PA 453, the Contractor hereto agrees not to discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions or privileges of employment, because of race, color, religion, national origin, age, sex, height, weight or marital status. Further, in accordance with Michigan 1976 PA No. 220, as amended, the parties hereby agree not to discriminate against an employee or applicant for employment with respect to hire, tenure, terms, conditions or privileges of employment, or a matter directly or indirectly related to employment, because of a disability that is unrelated to the individual's ability to perform the duties of a particular job or position.

The Contractor further agrees that it will require all sub-consultants and sub-contractors for this PROJECT comply with this provision.

The RCOC, in accordance with Title VI of the Civil Rights Act of 1964, 78 Stat. 252, 42 USC 2000d to 2000d-4 and Title 49, Code of Federal Regulations, Department of Federally-assisted programs of the Department of Transportation issued pursuant to such Act, hereby notifies all bidders that it will affirmatively insure that in any contract entered into pursuant to this advertisement, minority business enterprises will be afforded full opportunity to submit bids in response to this invitation and will not be discriminated against on the grounds of gender, disability, race, color, or national origin in consideration for an award.

Any costs associated with the above work will not be paid for separately but is considered included in the costs for other pay items in the contract.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
PROTECTION OF WETLANDS & PROPER DISPOSAL OF DEBRIS

RCOC/DESIGN:JA

PAGE 1 OF 1

RCOC20SP107FL
ORG:04-27-21

a. Description

Contractor shall be responsible for the proper disposal of, and shall properly dispose of, all debris material from the site of the work. Contractor shall be responsible for obtaining, and shall obtain, all appropriate federal, state and local permits, including permits from the county enforcing agency or municipal enforcing agency in accordance with Part 91 of Act 451 of the Michigan Public Acts of 1994. Contractor shall be responsible for complying, and shall comply, with all applicable laws, ordinances, and regulations, and shall be responsible for satisfying, and shall satisfy, all permit requirements for the disposal of earth, concrete, asphalt, used oil, chemicals, asbestos, and any and all other debris from the site of the work. Contractor shall not dispose, or allow the disposal, of any materials from the site of the work into or near any wetlands, lakes or streams or other protected areas without the express permission of the local municipality, the Department of Natural Resources or the U.S. Environmental Protection Agency, as applicable, or other applicable governmental authorities, even if such disposal is requested or allowed by the owner of such property.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
CRACK SEALING

RCOC/MAINT: SP

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REV: 1/20/2026

a. Description

This work shall consist of cleaning, preparing and sealing random cracks and joints on various asphalt roads by overband method and joint sealing on concrete roads by tip/flush filling method as directed by the Project Engineer. A majority of this work is expected to be performed on asphalt roads via the overband method and minor portion on concrete roads via the tip/flush fill method. This work shall be done in accordance with Section 502 of the Michigan Department of Transportation 2020 Standard Specifications for Construction, except as herein provided:

b. Materials

Overband and Concrete Crack Seal (Flush Fill)

Provide material as specified in subsection 502.02. The asphalt rubber product must come from the Qualified Product List.

c. Construction

1. Description- Overband Crack Fill (HMA) and Concrete Crack Seal (Flush Fill)

Clean cracks and joints in existing HMA pavement or concrete pavement and remove existing damaged or deteriorated overband, backer rod, loose dirt, vegetation and foreign material. Furnish and use a compressed air system that produces a continuous, high-volume, high-pressure stream of clean dry air that can produce a minimum of 100 psi and continuous 150 cfm air flow.

2. Equipment

The equipment used for cleaning random cracks for sealing in existing pavement shall include, but is not limited to the following:

- A. Air Compressor: Air compressors shall be portable and capable of furnishing not less than 150 cubic feet of air per minute at a pressure not less than 100 pounds per square inch. Suitable traps shall be employed to maintain the compressed air free of oil and moisture.
- B. Drying Equipment: The contractor shall provide equipment capable of removing any and all residual moisture from the random cracks by methods acceptable to the Project Engineer or his designee, note torch drying will not be permitted.
- C. Melter Applicator: Provide a melter applicator consisting of a boiler kettle equipped with a pressure pump, hose and applicator wand. Equip the hose with a shutoff

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
CRACK SEALING

RCOC/MAINT: SP

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control. Equip the unit with a mechanical full-sweep agitator in the kettle to provide continuous blending. Equip the unit with thermometers to monitor the material temperature and heating oil temperature. Provide thermostatic controls that allow the operator to regulate material temperature up to 425°F.

- D. Application Wand: Apply the material using either a wand followed by a V-shaped or U-Shaped squeegee or a round application head with a concave underside. For flush filling concrete cracks and/or joints use the appropriate narrow wand tip to apply material directly into cracks/joints with no overband.

3. Preparation

A. Clean Joints and Cracks

Transverse joints and random cracks will be thoroughly cleaned by means of an air jet under a pressure of not less than 100 psi or a combination of methods (removing back rod and air jet) for concrete joints. All dirt and debris resulting from crack cleaning shall be blown off the roadway by the contractor. Previously sealed open cracks shall be cleaned to new asphalt or concrete. Cleaning and removal of existing sealer material prior to resealing the crack or joint shall be considered incidental to the joint or crack repair. Debris from cleaning cracks shall not be blown onto vehicles. Contractor is responsible for disposal of concrete backer rod material resulting from tip/flush filling concrete joints. The contractor shall be responsible for any damages to vehicles or any other private property.

B. Drying Joints and Cracks

After the air compressor operation, all transverse joints and random cracks shall be dried to remove any remaining moisture.

4. Installation

Sealing Joints and Cracks shall be by the overband method or flush fill method.

No sealing compound shall be applied in wet joints or cracks or where frost, snow or ice is present, nor when the **pavement temperature is less than 40°F**, unless otherwise approved by the Project Engineer. No transverse joints or random cracks shall be sealed until the cleaning and preparation of the joints or cracks have been inspected and approved by the Project Engineer or his designee. The cleaning operation shall be positioned just ahead of the sealing operation to guard against debris blowing into cleaned cracks or newly sealed cracks. No debris shall be blown onto vehicular traffic.

Apply the material by either a wand followed by a "V" or "U" shaped squeegee or a round application head having a concave underside or a narrow tip for tip/flush fill concrete

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION FOR **CRACK SEALING**

RCOC/MAINT: SP

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joints. Apply 3" wide (unless otherwise directed by the Project Engineer) for standard coverage (overband) and shall be centered over the crack. Apply sealant at a thickness of **1/8 to 3/16** inch but do not oversupply squeegee. For flush filling of concrete cracks and/or joints use the appropriate wand tip to apply material directly into cracks/joints with no overband. Apply to dry and thoroughly cleaned cracks. Do not place material if moisture is present in the crack. Fill all longitudinal, random, and transverse cracks in the roadbed. Do not puddle or sag material. Fatigue cracks (alligator cracking), edge cracks, or slippage cracks shall **NOT** be sealed and will not be paid for unless directed by the RCOC.

Apply de-tackifying solution to protect the uncured crack treatment material from tacking. Do not permit traffic on the overband crack filler or tip/flush crack filler until de-tackifying solution has been applied or material has cooled sufficiently to prevent tracking by vehicle tires. The successful bidder is responsible for procuring de-tackifying solution at no additional cost to RCOC. Adhesion is checked by pulling up cooled sealant. Unbonded sealant is removed and crack is resealed at no additional cost to the RCOC.

5. Traffic Control

Traffic shall be maintained by Contractor throughout the project, in accordance with the most current version of the Michigan Manual of Uniform Traffic Control Devices (MIMUTCD) and any supplemental specifications.

Contractor shall coordinate this work with other contractors performing work within construction area or adjoining areas to avoid conflicts in maintenance of traffic, construction signing, and to provide for orderly progress of contract work.

Contractor shall monitor the weather and cease activity if weather conditions are poor. At no time during progression of work shall Contractor block access to any hydrant, valve, or appurtenance of any public utility without consent of the designated Road Commission's representative or specific utility company involved. Cost of maintaining traffic and all signs, barricades, temporary drives, and roadways will be included in proposed per pound price.

6. Weather Limitations

Place material at air temperatures between **45°F and 85°F**. **DO NOT** place material if moisture is present in the crack or when the temperature is below the dew point.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
CRACK SEALING

RCOC/MAINT: SP

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7. Final Cleanup

The work shall not be considered as completed, nor will final payment be made until the area has been restored to a neat, orderly appearance acceptable to the Project Engineer. Equipment, excess material, rubbish, etc. resulting from the contractor's operation must be removed from the site

8. Hours of Work

Work shall be permitted only between the hours of 8:00 am and 3:30 pm, Monday through Friday or as directed by the Project Engineer. Work may be permitted outside of the above hours/days at the discretion of the Project Engineer.

9. Acceptance

Upon completion of work, the contractor shall schedule an inspection with the Project Engineer or his designee. The Project Engineer or his designee will note deficiencies, including areas exhibiting adhesion failure, cohesion failure, missed cracks, or other factors that the Project Engineer or his designee determines unacceptable. The Contractor(s) shall correct the work that the Project Engineer or his designee identifies as unacceptable at no additional charge (except missed cracks) to the RCOC. The Contractor(s) shall notify the Project Engineer or his designee upon completion of the required corrective work.

d. Locations:

Locations are various throughout Oakland County. Exact road locations will be provided to the successful bidder(s) prior to project commencement.

e. Measurement and Payment:

The completed work as measured for cleaning and sealing random cracks and joints will be paid for at the contract unit price of the following items of work:

Pay Item	Pay Unit
Overband Crack Fill	Pound
<u>Secondary Pay Item</u>	
Concrete Crack Seal (Flush Fill).....	Pound

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
CRACK SEALING

RCOC/MAINT: SP

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“Overband Crack Fill” will be paid for at the contract unit price per pound of hot-poured joint sealant placed into joints and/or cracks, the price shall be payment in full for furnishing all the equipment, materials, labor, traffic control, and supervision necessary to remove the existing sealers, fillers and/or other foreign material, cleaning, sealing and completing the work as specified herein. The old sealer and any other material removed from the joints shall be disposed of by the contractor in a manner approved by the Project Engineer and shall be included as part of this pay item.

“Concrete Crack Seal (Flush Fill)” will be paid for at the contract unit price per pound of hot-poured joint sealant placed into joints and/or cracks with the appropriate wand tips, the price shall be payment in full for furnishing all the equipment, traffic control, materials, labor and supervision necessary to remove the existing sealers, fillers and/or other foreign material, cleaning, sealing and completing the work as specified herein. The old sealer and any other material removed from the joints including but not limited to backer rod, shall be disposed of by the contractor in a manner approved by the Project Engineer, and shall be included as part of this pay item.

No adjustments in unit price, regardless of the percentage of increase or decrease in quantities, will be allowed for the cleaning and sealing of longitudinal or transverse cracks, or for hot-poured rubber-asphalt sealing compound. The Project Engineer or his designee shall decide which joints or cracks are to be worked on and can shift or change quantities as needed, and this will be done without a change in unit prices or extra compensation due to the contractor for the change. With contractor consent, the Board may extend the contract at the same unit prices.

Resealing joints or cracks where material does not adhere will not be paid for. Repairs will have to be done at a later date as a separate operation, at the sole expense of the Contractor.

Seal all cracks and joints (unless otherwise described in this provision) in the road that are less than 11/4 inch wide. Fatigue cracks (alligator cracking), edge cracks, or slippage cracks shall **NOT** be sealed and will not be paid for.

RCOC reserves the right to modify the quantities and locations to be consistent with budgeted funds. RCOC reserves the right to split the bids between or among two or more bidders. The quantities listed in these documents are estimates and approximate only and such quantities are subject to increase or decrease. Should it be in the best interest of the RCOC to do so, the RCOC reserves the right to increase or decrease the quantities of work to be done under this Contract and to make changes in the plan and specifications that may increase or decrease the quantities of work. With contractor consent, the Road Commission may extend the contract at the same unit prices. No adjustment to bid unit prices will be allotted to the contractor for any increase or decrease of contract bid items.

ROAD COMMISSION FOR OAKLAND COUNTY

NOTICE TO BIDDERS

UTILITY COORDINATION

RCOC/DESIGN: DH

Page 1 of 1

RCOC12NB2
ORG: 2-6-2015
REV: 12/19/2019

a. General

The Contractor shall cooperate and coordinate construction activities with the owners of utilities as stated in Section 104.08, Cooperation by the Contractor, of the Michigan Department of Transportation 2012 Standard Specifications for Construction. In addition, for protection of underground utilities, the Contractor shall follow the requirements in Section 107.12, Contractor's Responsibility for Utility Property and Services. Contractor delay claims, resulting from a utility, will be determined based upon Section 109.05, Payment for Contract Revisions and Section 108.09, Request For Time extensions On Work Day, Calendar Day, and Calendar Date Contracts.

The location of all public utilities shown on these plans is taken from the best available data. The board of road commissioners for Oakland County will not be responsible for any omission or variations from the locations shown. Pursuant to Public Act 174 of 2013 as a condition of this contract notice shall be given to miss dig prior to underground work to be performed in accordance with this contract. Phone (800) 482-7171, (248) 647-7344, or 811.

b. Public Utilities

The Special Notes/General Notes in the plans show a list of utilities companies that have facilities located within the Right-of-Way.

The owners of existing service facilities that are within grading or structure limits will move them to locations designated by the Engineer or will remove them entirely from the highway Right-of-Way. Utilities may be relocating or replacing facilities which may or may not be shown on the plans in conjunction with the proposed roadwork.

Owners of Public Utilities will not be required by the Road Commission for Oakland County to move additional poles or structures in order to facilitate the operation of construction equipment unless it is determined by the Engineer that such poles or structures constitute a hazard to the public or are extraordinarily dangerous to the Contractor's operations.

c. Local Let Notes

No additional compensation will be paid to the Contractor for delays due to material shortages or other reasons beyond the control of the Road Commission for Oakland County, or for delays on construction due to the encountering of existing utilities that are, or are not, shown on the plans.

Delay of any utility relocations on any portion of this project may be considered the basis for a claim for an extension of time for completion as determined reasonable by the Engineer, but will not be considered the basis for a claim for extra compensation or an adjustment in contract unit prices.

ROAD COMMISSION FOR OAKLAND
NOTICE TO BIDDERS
FOR
BIDDERS INQUIRY CONTACT PERSON

RCOC/DESIGN: AB

PAGE 1 OF 1

12/17/2019

All inquiries concerning the plans and proposal for this project are to be directed to:

Steve Printz

Name

Forestry and Contract Administrator Supervisor

Title

sprintz@rcoc.org

E-mail Address

248-881-2167

Phone

The above contact person is available Monday through Friday, 7:00 a.m. to 11:45 a.m. /1:00 p.m. to 3:30 p.m. All inquiries must be made by e-mail for proper documentation. Telephone inquiries will not be answered.

To be able to process and distribute an addendum, if required, all inquiries shall be made at least seven calendar days before the letting. Inquiries made after this date will be considered by RCOC, but will not require a response.

Inquires must include the following information:

Project Number

Project Name

Name of Inquiring Person

Company Name

Phone Number, Fax Number, and E-Mail address

Detailed question(s) with reference to proposal page and plan sheet number

Other employees of RCOC have been instructed to direct all inquiries to the persons mentioned above.

ROAD COMMISSION FOR OAKLAND COUNTY
SPECIAL PROVISION
FOR
2020 STANDARD SPECIFICATIONS FOR CONSTRUCTION

RCOC/DESIGN:JO

PAGE 1 OF 1

RCOC20SP100AL
ORG:04-28-21

The RCOC Standard Specifications for Construction consists of the *Michigan Department of Transportation (MDOT) 2020 Standard Specifications for Construction* and the *Supplemental Specification for Errata to the 2020 Standard Specifications*. The *Michigan Department of Transportation 2020 Standard Specification for Construction* may be modified or supplemented by RCOC Special Provisions and/or *MDOT Supplemental Specifications and Special Provisions* that are included and made a part of the project proposal.

ROAD COMMISSION FOR OAKLAND COUNTY

SPECIAL PROVISION
FOR
**DIVISION I – GENERAL PROVISIONS
FOR LOCAL LET PROJECTS**

RCOC/DESIGN:JO/JA

PAGE 1 OF 13

RCOC20SP100BL
ORG:01-24-22

The General Provisions shall be in accordance with the *Michigan Department of Transportation 2020 Standard Specifications for Construction* except as herein provided.

SECTION 101. TERMS, FORMAT, AND DEFINITIONS

101.2 Abbreviations

Subsection 101.02 is hereby supplemented with the following:

RCOC Road Commission for Oakland County

101.3 Definitions

Delete the following definitions in subsection 101.03 in their entirety and replace with the following:

Commission. The Board of County Road Commissioners of the County of Oakland.

Department. The authorized employees of the Board of County Road Commissioners of the County of Oakland collectively called the Road Commission for Oakland County.

Bid Appeal Committee. A RCOC committee that performs the administrative review of appeals of low bid rejections.

Bid Guaranty. The amount the bidder agrees to pay to RCOC, at the time of bid submission, if the bidder fails to execute the contract form and file satisfactory bonds and other required documents necessary for award of the Contract within the 14 day period provided or within RCOC approved extensions.

Bid Review Committee. A RCOC committee that reviews irregular bids for adherence to standard bid procedures.

Limits of Earth Disturbance. Is the slope stake line (SSL), as shown in the Contract documents.

SECTION 102. BID SUBMISSION, AWARD AND EXECUTION OF CONTRACT

102.01 Prequalification of Bidders

Subsection 102.01 is hereby supplemented with the following:

All persons proposing to bid on RCOC work must be prequalified with the Michigan Department of Transportation under their current rules and regulations and must have the proper classification and numerical rating required for the project on which a Bid is to be submitted. Prequalification will not be required on projects with an estimated Contract price of \$50,000 or less unless the project involves Specialty Classification work. The estimated Contract price will be determined by the RCOC.

102.14 Execution and Award of Contract

Subsection 102.14 is hereby deleted and replaced with the following:

The Department will provide the contract and bond forms to the determined low Bidder, at the address provided on the Bid. Within 14 calendar days of transmittal, the Bidder must return, and the Department must receive, the signed contract, bond forms, and other documents required by the Department. The Department may grant an extension of that deadline, if the extension would not impair the Department's interests. If the Department executes a contract received after the deadline, an extension will be deemed to have been granted.

If the determined low Bidder withdraws their Bid submittal after opening and at any time prior to contract Award, it may forfeit its Bid Guaranty subject to the provisions of 102.16.

If the Department does not receive the signed contract, bond forms, and other documents required within 14 calendar days of transmittal, or an extended deadline, the Department may award the contract to the next low Bidder, or otherwise exercise its discretion in accordance with subsection 102.13.

If the Department does not execute the contract within 49 days after the transmittal of contract documents (including Department-approved extensions), the determined low Bidder may withdraw its Bid without penalty. If the Department is responsible for the delay in Award of the contract, the determined low Bidder may agree to extend the deadline for the execution of the contract for an agreed upon time period.

The Department considers the contract awarded and binding when signed by the determined low Bidder and executed by the Department.

102.15 Requirements of Contract Bonds

Subsection 102.15 is hereby deleted and replaced with the following:

Bonds Furnished by Principal Contractor: The proposed contractor, referred to as the principal contractor, shall furnish at his/her own cost to Road Commission for Oakland County a performance bond and a payment bond which shall become binding upon the award of the contract to the contractor. Each of the bonds furnished shall be in the amount of not less than 100 percent of the total contract price. Such bonds shall be on forms provided by the Road Commission for

Oakland County, shall be executed by a surety authorized to do business in the State of Michigan, and shall meet the statutory requirements of the State of Michigan.

102.20. Joint Two-Party Checks.

Subsection 102.20 is hereby deleted.

SECTION 104. CONTROL OF WORK

104.07.C Maintenance During Construction

Subsection 104.07.C.2 is hereby supplemented as follows:

Dust shall be controlled in accordance with Michigan Air Pollution Control Rules and Part 55 (Air Pollution Control) of The Natural Resources and Environmental Protection Act, 1994 PA 451, as amended. Water for dust control shall not be paid for separately but included in other items of work.

104.08 Cooperation by the Contractor

Subsection 104.08 is hereby supplemented as follows:

If Contractor is unable to maintain the work schedule for reasons other than Contractor's fault, Contractor, at no extra charge, shall cooperate with the Department to adjust the work schedule, or the work, or both, as directed by the Department, in order to keep in progress as much of the work as possible under the circumstances, to reduce delays and to mitigate additional costs.

No additional compensation will be paid to the Contractor for any delay or inconvenience due to delays whether reasonable or unreasonable due to the operations of such other parties doing work indicated or shown on the plans or in the proposal, or for any delays whether reasonable or unreasonable on construction due to the encountering of existing utilities that may or may not be shown on the plans.

104.09. Lines, Grades, and Elevations.

Subsection 104.09 is hereby deleted and replaced with the following:

Location, alignment, elevation datum, and grade of the work will be determined by the Engineer who will set the controls necessary to properly mark these elements. The Contractor shall assume full responsibility for all other detail dimensions and elevations measured from the lines, grades, and elevations established.

The Engineer will provide grade and alignment stakes needed for normal progress of the work by the Contractor. The Engineer may require prior notice, which may be requested in writing, up to 48 hours in advance when the Contractor's staking needs are indeterminate or erratic or when the magnitude of the staking work

makes scheduling necessary. It will be the Contractor's responsibility to be sure that all information contained on the stakes is understood.

The Contractor shall provide such scaffolds, batterboards, straightedges, templates, or other devices necessary to facilitate laying out and inspecting the work.

a. Road Stakes and Controls.

Stakes set by the Engineer shall be carefully preserved by the Contractor. Any stakes destroyed due to the Contractor's carelessness will be replaced at the Engineer's earliest convenience. When restaking becomes necessary two or more times, the Contractor will be notified in writing and may be charged for the crew time involved.

The following staking will be provided by the Department, if required:

1. **Right-of-Way.** A right-of-way stake will be set at maximum of 100 ft intervals along the right-of-way line and at all corners marking a change in width or direction.

2. **Clearing Stakes.** Clearing stakes will be set at 50 ft intervals. They will be set at the clearing line or at an agreed upon offset and show the limits of clearing. Individual tree removal shall be marked and determined by Engineer.

3. **Slope Stakes.** Slope stakes will be set right and left of centerline at 50 ft intervals. Ditch cut, cut or fill, slope and ditch information, and distance from centerline will be provided on the stake. Swamp ditches will be staked separately. Stakes will be set at the slope intersection point or at an agreed upon offset.

4. **Subgrade Stakes.** Stakes at 50 ft intervals and at low points of vertical curves will be provided for trimming the subgrade. The maximum number of stakes provided will be at each grade break point as shown on the typical section.

5. **Pavement Stakes.** After the subbase is placed and rough graded, pavement stakes will be provided as follows:

A. Stakes will be placed at 50 ft intervals on tangent sections and on curves or spirals with a radius of 1,150 ft or more.

B. Stakes will be placed at 25 ft intervals on curves or spiral with a radius of less than 1,150 ft.

The pavement grade stakes will be used for finish grading of the subbase, base course, and pavement. The pavement grade stakes will be checked for grade and alignment prior to the paving operation. Offset distance and grade for the Contractor's operation will be discussed and agreed upon prior to staking.

6. **Drainage and Utility Stakes.** One set of stakes will be set for drainage and utility work. These stakes will be placed at intervals not greater than 50 ft and offset from

the centerline of the trench a distance agreed to with the Contractor. Drainage and utility structures will be located by means of a stake at their center and two or more offset stakes. The Contractor shall be responsible for positive drainage. Adjustments in location and grade for drainage items shall be approved by the Engineer. The following information will be provided on the offset stakes:

- A. Distance to center of structure or utility line;
- B. Cut to flowlines of the utility and pipe opening in the structure; and
- C. Cut and fill to top of casting.

7. **Tunnel Sewer Stakes.** Initial line and grade will be provided in the shaft. Grade will be carried forward from the shaft by the Contractor. Additional alignment will be provided at no greater than 1000 ft intervals through vertical holes provided by the Contractor and at all curves in the tunnel by the same means. Additional alignment may be provided at the discretion of the Engineer.

8. **Miscellaneous Item Stakes.** Alignment and grade stakes will not be supplied for other miscellaneous items unless this alignment and grade data cannot be determined from the finished slab or judicious use of the plans.

b. Bridge Structure Stakes and Controls.

Line and grade for excavation of footings will be provided. Upon completion of footing excavation, the engineer will provide alignment along centerline and reference lines of each unit for footings, pile layout, columns, walls, abutments, and piers. The aligning and dimensioning of forms will be the Contractor's responsibility. The Engineer will also provide grades for footings, pile cutoffs, columns, walls, abutments, and piers. A stakeout diagram showing layout and bench mark information may be supplied to the Contractor, if requested. The Contractor shall be responsible for the layout of all pile locations. The Engineer will check the layout after it is completed and prior to the Contractor driving any piling. Additional staking to be provided shall be as follows.

1. **Bridge Substructures.** The Engineer will check line and grade of bridge seats and span lengths prior to the casting of pier caps or abutment walls.
2. **Bridge Superstructures.** Deck and rail grades will be set by the Engineer. Screed grades will be set by the Contractor and checked by the Engineer. It shall be the Contractor's responsibility to set the screed in place, prior to pouring, to check slab depth and steel cover. The Engineer shall be permitted time to make dry run checks before the Contractor orders concrete.
3. **Sidewalk, Curb, and Railing.** Line and grade will be set on the poured deck at a maximum of 25 ft intervals for each separate location unless lesser intervals are required. One set of line and grade will be provided where sidewalk, or curb, and railing is to be constructed.

c. Site Adjustments and Plan Errors.

The Contractor is hereby notified that all field conditions may not have been incorporated into the plans that would allow an accurate fit of the proposed work. If deviations from the plans occur, the Contractor shall immediately notify the Engineer and propose a potential solution. The Engineer shall determine the actual solution and give direction to the Contractor as soon as possible.

A plan error shall be defined as any omission, miscalculation, or inaccurate dimension which occurs on the plans that cannot be corrected to fit the existing conditions of the proposed projects by the technical knowledge of an experienced staking crew in the normal performance of its duties. The Contractor shall notify the Engineer when plan discrepancies occur.

If a plan error, as defined above, is discovered, then all of the following shall occur. The Contractor shall immediately notify the Engineer of all plan errors. The Engineer will authorize the solution to the plan error as soon as possible. If the plan error results in extra work to the contract, the Engineer shall issue a work order directing the corrective action.

104.13 Materials, Soils, Street/Project Inspection

Subsection 104.13 is hereby added as follows.

The Contractor is required to schedule inspection by completing an online inspection request form, which is located at <https://www.rcocweb.org/503/Contractor-Inspection-Request>

Contractors failing to submit the appropriate scheduling webform by 3:00 PM the day prior to when inspection or testing is needed may be denied inspection and/or testing due to the unavailability of staff. Inspection or testing for Saturday, Sunday, and Monday must be scheduled by 3:00 PM on the preceding Friday.

In the event a webform is somehow inaccessible, the RCOC Construction/Testing Division can be contacted by phone at 248-858-4855 by the same notification standards listed above. The Engineer may modify the project inspection notification procedure at any time.

Work performed without inspection by the Engineer may be rejected and will not be approved for payment. Rejected work shall be removed and replaced at the sole expense of the Contractor and will not be grounds for an extension of time.

If inspection or testing is denied due to the Contractor's failure to notify the RCOC, as described above, claims by the Contractor for Extensions of Time or additional compensation will not be allowed.

Project Inspection is subdivided into four categories: General Inspection, Materials

Inspection, Traffic Engineering Inspection, and Signal Systems Inspection.

a. General Inspection Request

The General Inspection Request form shall be used to schedule inspection of all other work items not included in the Materials Inspection Request, Traffic Engineering Inspection Request or Signal Systems Inspection Request. If the scheduled work requiring inspection will be ongoing for consecutive days, a separate submission will not be required each subsequent day if an onsite Contractor representative has notified the Inspector or Engineer of the next day's work.

b. Materials Inspection Request

The Materials Inspection Request form shall be used to schedule sampling and testing of materials. It must be submitted for each day sampling/testing of materials will be required.

c. Traffic Engineering Inspection Request

The Traffic Engineering Inspection Request form shall be used to schedule inspection of all pavement marking work items and all sign work items. If the scheduled work requiring inspection will be ongoing for consecutive days, a separate submission will not be required each subsequent day if an onsite Contractor representative has notified the Traffic Operations Engineer, Inspector, or Engineer of the next day's work.

d. Signal Systems Inspection Request

The Signal Systems Inspection Request form shall be used to schedule inspection of all traffic signal work items. If the scheduled work requiring inspection will be ongoing for consecutive days, a separate submission will not be required each subsequent day if an onsite Contractor representative has notified the Signal Operations Engineer, Inspector, or Engineer of the next day's work.

The Contractor is required to perform Quality Control density testing for all items that require density and such is included in other items of work and not paid for separately. Quality Assurance tests will not be performed until there are passing Quality Control tests. If a Quality Assurance density test fails, then re-tests will be performed at the Engineer's earliest convenience, which could be more than 24 hours after the failing test. No additional compensation will be paid for costs, nor will a time extension be granted, for delays due to failed Quality Control tests and associated Quality Assurance re-tests.

If any inspected or tested work fails the first inspection or test, any additional costs incurred by the Department to re-inspect or re-test may, at the sole discretion of the Engineer, be invoiced to and paid by the Contractor.

If materials testing (concrete, asphalt, aggregate, etc.) is required, the signal contractor will be required to use Signal Systems Inspection Request online form in addition to the Materials Inspection Request online form for a single day.

Refer to RCOC Special Provision for Traffic Signal Inspection (RCOC20SP818A) for

additional information.

104.14 Limitations on Private Work.

Subsection 104.14 is hereby added to Section 104 as follows.

During construction operations, the Contractor shall not perform work by private agreement with property owners adjacent to the Project. Work may be allowed when requested by local municipalities, but only with the written consent of the Engineer.

SECTION 105. CONTROL OF MATERIALS

105.02 Natural Material Sources Found within Excavation Limits

Subsection 105.02 is hereby supplemented with:

All existing manhole frames, covers, and steel beam guardrail within the project limits that are not to be used in the reconstruction of the roadway shall be removed and stockpiled at the location determined by the Engineer and shall remain the property of the RCOC if directed by the Engineer. The removal and stockpiling of existing materials shall be paid for as part of existing pay items.

105.05 Approval of Materials for Incorporation into the Work**105.05. A. Approval by Certification or Qualified Product List**

Subsection 105.05.A is hereby supplemented as follows:

The following material tests and certificates will be required on all materials incorporated into the work. Other tests may be conducted by the RCOC to determine if the materials furnished meet the requirements of the specifications.

The following materials shall be tested or certified, as specified by the Contract. This work shall be done at the expense of the Contractor except as otherwise indicated.

Corrugated Metal Culvert Pipe, Corrugated Metal Preformed Pipe, Corrugated Metal Plate for Field Assemble, and Beam Guard Rail: The metal gauge and heat number shall be marked on all plate and pipe delivered to the project. In addition, curved Beam Guard Rail shall be marked with metal tags as specified under section 807, Guardrail, Guardrail Terminals, and Miscellaneous Post. A certification from the manufacture as to size, amount, heat number, gauge and spelter coating shall accompany all plate and pipe delivered to the project.

Concrete Pipe: The class of pipe shall be marked on all concrete pipe delivered to the project. A certification from the manufacture as to size, amount, class and wall type shall accompany all concrete pipe delivered.

Prestressed Concrete Beams: Tests shall be performed in accordance with section 708, Prestressed Concrete Beams, with all tests results submitted to the Road Commission for Oakland County.

Air-Entraining Admixture for Concrete: A certification as specified under section 903, Admixtures and Curing Materials for Concrete, shall be submitted to the RCOC before approval is granted for the use of the air entraining agent.

Cement: All cement used in the work shall be certified, on the bulk cement delivery ticket or the ready mixed concrete delivery ticket that it conforms to the requirements specified in the Cement and Lime, Section 901. The certification shall also indicate the type of Portland Cement used or delivered.

Bituminous Materials: All bituminous materials used in bituminous mixtures, bond coats and prime coats shall be tested as directed by the Engineer and a testing certificate approved by the Engineer shall accompany all material delivered. The expense of testing this material will be paid for by the RCOC, however, the Contractor must make all the arrangements to get the material tested.

The use of the above certificates and tests does not relieve the Contractor of the responsibility of assuring that all the materials used in the work conform to the requirements of Material, Division 9.

105.5 B. Acceptance by Test

Subsection 105.05B is hereby supplemented as follows:

The following materials and mixtures will be inspected and tested during their preparation and use by the Road Commission for Oakland County:

1. Plant inspection of concrete proportioning.
2. Plant inspection of bituminous mixtures.
3. Coarse aggregates and fine aggregates used in concrete.
4. Coarse aggregates, fine aggregates, and mineral aggregates used bituminous mixtures.
5. Granular Material - Class I, Class II and Class III.
6. All surfacing aggregates - In addition the mixture of sodium chloride to the aggregates must be inspected.
7. Bituminous materials used in bituminous mixtures, bond coats, and prime coats.

For all the above items, unless otherwise specified, the Contractor shall notify the RCOC two days prior to the beginning of production of material or two days prior to the use of natural material, so that arrangements for inspection can be made.

105.6 Storage of Materials:

Subsection 105.06.D shall be deleted in its entirety and replaced as follows:

No such use of private property by the Contractor or any Sub-Contractors shall occur before the Engineer has possession of the written permission, which must be notarized by a public notary. If such use does occur before the Engineer has possession of the notarized agreement, the Engineer will issue a Notice of Non-compliance suspending all work immediately until such time a copy of the written, notarized permission is provided or the property in question has been vacated by the Contractor, or any Sub-Contractors, and restored to its original condition, with no extension of time or additional cost for idle equipment, downtime, etc. to the Road Commission for Oakland County.

SECTION 107. LEGAL RELATIONS AND RESPONSIBILITY TO THE PUBLIC

107.02 Permits and Licenses

Subsection 107.02 is supplemented with the following.

The Contractor shall adhere to the requirements of any and all permits issued to the RCOC or obtained by the Contractor that are required to complete the project, including whatever changes to these permit requirements, as directed by the Engineer.

Contractor shall contact the local water department for a permit to use hydrants prior to use and shall only use hydrants according to the provisions of such permit. All costs associated with the use of a hydrant (permits, water usage) will not be paid for separately, but will be considered included in other items of work.

107.6 Furnishing Right of Way

Subsection 107.06 is replaced with the following.

The Road Commission for Oakland County is responsible for securing all right of ways in advance of construction. These right-of-ways are shown on the plans and is the Contractor's responsibility to verify this right of way information prior to beginning work.

Unless otherwise specified on the plans or directed by the Engineer, it shall be the Contractor's obligation, at his own expense, to furnish areas beyond the project right of ways for the following: Disposal areas for surplus and unsuitable materials; areas for stockpiling and/or construction materials, equipment and plants.

107.07 Protection and Restoration of Property

Subsection 107.07 is hereby supplemented as follows:

Mailboxes that are required to be moved shall be moved to the final location or moved temporarily and reset. All work associated with mailbox relocation shall be included in the standard pay item for Post, Mailbox (Ea). This pay item will be paid once per mailbox and shall include any temporary and permanent mailbox installation, regardless of mailbox and post type.

Traffic control signs and street name signs shall be removed, salvaged, relocated and maintained by the Contractor as indicated on the plans. This work may be required multiple times during the project to accommodate construction operations. This work shall be performed on the same day of a change in operations requiring the sign work as determined and/or approved by the Engineer. Upon completion of the project, permanent traffic control signs will be relocated or replaced in their proper position by the Contractor as indicated on the Plans. The sign removal, salvaging, relocating, installation, and related work will be paid for with the appropriate pay item, at the contract unit prices each time the work is determined to be necessary by the Engineer to accommodate construction operations.

All temporary and permanent signs damaged by the Contractor during the course of construction, will be replaced by the Contractor immediately or the Engineer may direct RCOC forces to replace Contractor damaged signs. Costs for RCOC replacement of Contractor damaged signs will be deducted from the Total Contract Price owed the Contractor. The RCOC will inventory all signs at the beginning of a project, and upon project completion, before final acceptance is made.

107.09 Archaeological and Historical Findings

Subsection 107.09 is hereby supplemented as follows:

Findings of significance, as determined by the Engineer, that are of archaeological, historical, mineral, cultural, biological, or scientific interest, shall remain the property of the Road Commission for Oakland County. No additional compensation is due to the Contractor for such findings other than payment for the use of equipment, labor and materials in the recovery of such findings in accordance with the contract.

107.10 Indemnification, Damage Liability, and Insurance.

Subsection 107.10 is hereby deleted and replaced with the Special Provision for Indemnification, Damage Liability and Insurance contained elsewhere in this proposal.

107.21. Open to Traffic.

Subsection 107.21 is supplemented with the following:

In order for any portion of the project to be deemed "Approved for Traffic", the Engineer will verify that the surfacing material, shoulders, guardrails, signs and other appurtenances are completed as per the Contract. The determination of Approved for Traffic is made at the sole discretion of the Engineer. Upon the Engineer making the determination that a roadway or portion thereof is Approved for Traffic, the roadway or portions thereof may be open to traffic.

SECTION 108. PROSECUTION AND PROGRESS

108.05. Prosecution and Progress

Subsection 108.05. is hereby supplemented with the following:

When the Contractor fails to perform the duties as called for on these plans and in the contract, the Engineer may require RCOC forces to perform work, with or without notification to the Contractor or the Surety. The Contractor will be charged equipment rental rates as established by the RCOC. Time charged to the Contractor shall be from the time that the RCOC workforce and equipment leave the RCOC yard to the time that they return to the RCOC yard.

108.09.B. Compensable Delays

Subsection 108.09.B.2 is hereby deleted and replaced with the following:

2. Railroad interference within the project limits;

SECTION 109. MEASUREMENT AND PAYMENT

109.01.B. Measuring Weight on Scales

Weighing of Transported Materials:

The following items will not require a weigh person to be provided by the Road Commission for Oakland County when the quantity of material does not exceed 150 tons in one day. The supplier weight ticket from an approved scale will be acceptable.

Coarse Aggregates

Dense-Graded Aggregates Open-Graded Aggregates Granular Materials

The following items will not require a weigh person to be provided by the Road Commission for Oakland County when the quantity of material does not exceed 100 tons in one day. The supplier's weight ticket from an approved scale will be acceptable.

HMA Base Course Mixtures HMA Surfacing Mixtures.

Weight Limits and Basis of Payment:

Material being incorporated into Road Commission for Oakland County projects and transported by truck over public roads shall be paid for according to the lower of the two following:

1. The actual weight at the contract unit price.
2. The amount of material which could have been legally transported in terms of truckload lots at the contract unit price. A weigh person shall note the legal capacity on the tickets and weight sheets.

109.07. Final Inspection, Acceptance, and Final Payment.

The third paragraph of Subparagraph C.1. of this section 109.07 is amended in its entirety to read as follows:

After achieving satisfactory final inspection, the Contractor is relieved of the duty of maintaining and protecting the project. In addition, the Contractor is relieved of its responsibility for damage to the work that may occur after satisfactory final inspection.

109.09 Final Inspection, Acceptance, and Final Payment:

Subsection 109.09 is hereby supplemented with the following:

Rights and Responsibilities of Contractor and Subcontractors - All *obligations and* claims made pursuant to labor or material furnished in performing work in conformance with the agreed understanding of the contracting parties shall be governed by 1963 PA 213, being section 129.201 through 129.211 of the 1970 Compiled Laws of Michigan.

Final Payment will not be made until the contractor has filed with the Road Commission for Oakland County the consent of the Surety to payment of the final estimate. Consent must be filed on Road Commission form, "Consent of Surety for Reserve Reduction and Final Payment."